

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 18, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, JUNE 18, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, JUNE 17, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0057364 ALLIANCE CREDIT SERVICES v. BROWN, ALFRED

Plaintiff's Motion for Issuance of Earnings Withholding Order Against Earnings of Judgment Debtor's Spouse and Order to Add Non-Debtors Spouse's Name to Abstract of Judgment

Plaintiff moves for the court to add defendant Alfred Brown's wife, Ying W Brown, to the abstract of judgment and thereafter issue an earnings withholding order pursuant to Code of Civil Procedure section 706.109.

An earnings withholding order may be issued within 180 days after a writ of execution has been issued to the county where the judgment debtor's employer is to be served. (Code Civ. Proc., §§ 699.540, 706.102.)

Here, the writ of execution was issued in Placer County on February 16, 2022, and returned to the court on August 15, 2022. Plaintiff's motion for an earnings

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withholding order was filed on May 27, 2026, which is more than 180 days after the writ of execution was issued in Placer County.

Accordingly, plaintiff's motion is denied because it was not timely brought.

2. M-CV-0084690 NAVY FEDERAL CREDIT UNION v. REITZ, CELESTE

Plaintiff's Motion to Set Aside Notice of Settlement and Restore Case to Active Status

Plaintiff moves to set aside the notice of settlement filed with the court on April 12, 2024, and restore the case to active status. The court previously denied plaintiff's motion on April 10, 2025, because plaintiff did not attach the parties settlement agreement for the court's consideration nor provide sufficient legal authority for the court to set aside the notice of settlement.

Plaintiff's moving papers, and declaration filed in support of the papers, contends the parties reached a settlement agreement and that defendant breached the settlement agreement such that the court should set aside the notice of settlement. However, the papers and declaration also contend no settlement agreement was executed. The court is unable to reconcile these conflicting points. Additionally, the court is unable to determine whether defendant breached any agreement reached between the parties as plaintiff again did not attach an agreement.

Plaintiff also points the court to California Rules of Court, Rule 3.1385, subdivision (b), which plaintiff contends "provides that if a conditional settlement is not completed as agreed, the plaintiff must promptly notify the court. In such event, the court may restore the matter to active status to proceed to trial or other resolution." (Plaintiff's Motion to Vacate Notice of Conditional Settlement, 1:18–20.) That reading is incorrect. California Rules of Court, Rule 3.1385, subdivision (b) provides in full

Except as provided in (c) or (d), each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case. If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. (Cal. Rules of Court, rule 3.1385, subd. (b).)